

February 13, 2019



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20784

EXPIRATION DATE: 2021-01-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Chemtrade Phosphorous Specialties LLC
Lawrence, KS
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time movement of a damaged intermediate bulk container (IBC) for the purpose of cleaning, inspection, and repair. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.3 in that temporary repair of IBCs is not authorized, except as provided herein.
5. BASIS: This special permit is based on the application of Chemtrade Phosphorous Specialties LLC dated September 20, 2018 submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2018090610

February 13, 20196. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Phosphorus pentasulfide, <i>free from yellow or white phosphorus</i>	4.3	UN1340	II

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) Prescribed packaging is a non-conforming IBC that was originally designed and manufactured to the UN11B specifications in accordance with the requirements in Part 178 Subpart O.

(2) Cracks in the shell of the IBC, located at the opposite end from the discharge valve near the forklift brackets, must have been temporarily repaired using Devcon Plastic Steel Putty as described in Chemtrade Phosphorous Specialties LLC's application dated September 20, 2018, on file with the Office of Hazardous Materials Safety Approvals and Permits Division.

(3) IBC must only contain residual amounts of phosphorus pentasulfide that cannot be safely cleaned at the customer site.

b. OPERATIONAL CONTROLS:

(1) Transportation is authorized for a one-time movement:

(i) From: Chevron Oronite, 10285 S. Highway 23, Belle Chasse, LA 70037

(ii) To: Chemtrade Phosphorus Specialties L.L.C., 440 N. 9TH Street, Lawrence, KS 66044

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(2) The IBC must be loaded for transportation in a manner that minimizes stress to the repaired section, oriented with the repaired section facing upwards.

(3) The carrier must have access to a portable hydrogen sulfide monitor during transportation and must check for hydrogen sulfide around the IBC prior to departure and whenever the vehicle is parked while still in route to the destination.

(4) Transportation is only authorized for the purpose of IBC cleaning, inspection and repair.

c. MARKING:

(1) The IBC must be marked "Do not load. Temporarily repaired IBC. Send to shop for cleaning and repairs".

(2) The IBC must be plainly and durably marked "DOT-SP 20784".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 – Immediate notice of certain hazardous materials incidents, and 171.16 – Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode